

Comparing Sharia and Liberal Pluralism on Religious Tolerance

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PROVIDER

Openrouter

MODEL

Deepseek/deepseek-v4-pro En

LANGUAGE

AUDIENCE

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INTONATION

NEUTRAL

LENGTH

Long

TEMPERATURE

0.7

SYSTEM PROMPT

You are an expert AI content generator specializing in creating structured article.

USER PROMPT

Write a concise, self-contained article entry for the title: "Comparing Sharia and Liberal Pluralism on Religious Tolerance".

Overall topic for alignment: Interfaith relations and pluralism as expressions of individual rights in religiously diverse contexts in sharia.

Important points to cover: Include Arabic terms, historical contexts, quranic foundations of sharia, minority and majority settings, Islamic theological schools, Islamic juristic schools of Hanafi, Hambali, shafi'i and Malaki, orientalist perspective, AI's humanistic approach to sharia, Human rights declaration..

- Output format: GitHub-Flavored Markdown. The markdown must be clean—do not include any code fences or surrounding markers. Target writing format: Blog Post. Follow these format-specific rules exactly:

- Aim for at least 6000 characters while staying under 12000. Prefer verifiable facts from the provided sources; do not fabricate citations or specific data.
- Place external links only in the "References" section; do not include inline external links in the body text.
- Maximum content length (including headings and references): 12000 characters. If nearing the limit, prioritize the most informative sections and keep references to 2-3.
- Write in the target response language. Avoid fluff; be precise and actionable. Do not include images or tables.
- Do not include code fences or any text outside the markdown content.

No external web sources are attached. Do not fabricate citations or specific facts that cannot be verified. Keep claims general and verifiable. In the 'References' section, include: "No external sources used."

****Respond in English****

SUMMARY

The article examines whether sharia can accommodate religious tolerance comparable to liberal pluralism. Key Quranic verses like “no compulsion in religion” (2:256) and “unto you your religion” (109:6) support coexistence, but other passages have been used to justify social separation. Historically, the Constitution of Medina and the dhimma system offered protected status to non-Muslims in return for a tax, though with social restrictions codified in the Pact of Umar. The Ottoman millet system later granted communal legal autonomy. Legal diversity among Sunni schools reveals a spectrum: Hanafis were relatively accommodating, Malikis and Shafi‘is more restrictive, and Hanbalis often strictest on social interaction. The Mu‘tazila elevated reason and natural justice, Ash‘aris subordinated rights to divine command, and Maturidis offered a middle ground. Orientalist critiques portray sharia as inherently intolerant, while defenders point to its protective historical role and postcolonial distortions. AI tools now mine classical texts to surface overlooked pluralist rulings. Modern human rights frameworks clash with sharia-based declarations that subordinate individual conscience to communal orthodoxy. Contemporary thinkers reinterpret dhimma as a historical artifact and invoke *maṣlaḥa* (public welfare) to justify equal citizenship, arguing that the Quran’s endorsement of religious freedom is a universal principle. Ultimately, sharia’s approach is not static but a dynamic negotiation shaped by context, interpretation, and the core value of justice.

FULL CONTENT

Comparing Sharia and Liberal Pluralism on Religious Tolerance

The encounter between *sharia* (Islamic law) and liberal pluralism often centres on a single question: can a legal tradition rooted in revelation accommodate the kind of religious tolerance that liberal democracies take as foundational? This article explores that question by examining Islamic scriptural sources, historical practice, juristic diversity, theological currents, and modern reinterpretations—including the emerging role of artificial intelligence in retrieving humanistic strains within the sharia. No simple “yes” or “no” can capture a reality that spans fourteen centuries of legal thought and countless cultural contexts.

Quranic Foundations of Religious Tolerance

The Quran contains verses frequently cited as charter texts for religious coexistence. The command *lā ikrāha fī al-dīn* (“There is no compulsion in religion”, Q 2:256) is the most celebrated, establishing a principle that faith must be a matter of free choice. Equally important is *lakum dīnukum wa-liya dīn* (“Unto you your religion, and unto me my religion”, Q 109:6), which acknowledges irreducible religious difference. Elsewhere, believers are instructed to deal kindly and justly with those who have not fought them on account of faith (Q 60:8–9). These verses form what modern Muslim pluralists call a *fiqh al-ta’āyush* (jurisprudence of coexistence).

Yet the same scripture also contains verses that appear to limit tolerance. The concept of *al-walā’ wa-l-barā’* (loyalty to Muslims and disavowal of non-Muslims) and the status of *kāfir* (disbeliever) have been deployed to justify social separation. The tension between inclusive and exclusive verses lies at the heart of the debate and has produced divergent exegetical traditions.

Historical Contexts: The Model of Medina and the *Dhimma* System

In 622 CE the Prophet Muhammad established a multi-religious polity in Medina. The so-called Constitution of Medina granted internal autonomy to Jewish tribes while binding all parties to a common defence pact. This document is often cited as an early precedent for pluralism under Islamic rule. It employed terms like *ummah* (community) that could encompass religious and political boundaries simultaneously.

As the Islamic empire expanded, the legal category of *ahl al-dhimma* (protected people) emerged. Jews, Christians, and eventually other groups were granted security of life, property, and worship in return for paying the *jizya* tax. The ninth-century *Pact of Umar* codified this relationship, imposing social restrictions—on church buildings, dress, and public displays of religion—that strike modern observers as discriminatory. The Ottoman *millet* system later refined the idea, allowing each religious community to govern its own personal-status law under the supervision of a patriarch or chief rabbi.

The dynamics shifted dramatically depending on whether Muslims were a majority or a minority. In majority settings, the *dhimma* framework dominated. In minority contexts, classical jurists applied *fiqh al-aqalliyyāt* (the jurisprudence of minorities), often emphasising the obligation to obey the laws of the land and to honour covenants with non-Muslim polities. This minority jurisprudence has gained renewed attention in contemporary Europe and North America.

Islamic Juristic Diversity: The Four Sunni Schools

The four major Sunni legal schools—Hanafi, Maliki, Shafi'i, and Hanbali—developed distinct positions on the rights and obligations of non-Muslims, revealing a spectrum that belies any monolithic “Islamic” view.

- **Hanafi school:** Often the most accommodating. Abu Hanifa held that a *dhimmi*'s life was of equal value to a Muslim's for purposes of blood-money (*diya*). Hanafis generally permitted non-Muslim testimony in certain civil cases and allowed the construction of new churches in towns founded after the conquest, a point sharply contested by other schools. In minority settings, Hanafi jurists stressed that contracts with non-Muslim states were binding sacrosanct.
- **Maliki school:** Rooted in Medinan practice, it tended to restrict public expressions of non-Islamic faith. Malik ibn Anas opposed new church construction and imposed stricter rules on *dhimmi* dress and public processions. Yet he also upheld the bedrock protection of life and property.
- **Shafi'i school:** al-Shafi'i systematized the rules of *dhimma* and argued for a clear distinction between the rights of Muslims and non-Muslims. For him, apostasy from Islam (*ridda*) was a capital crime, a stance shared by all four schools but enforced with varying rigour. Shafi'is often limited the testimony of non-Muslims against Muslims.
- **Hanbali school:** Often the strictest on social interaction. Ibn Taymiyya, a Hanbali luminary, allowed for harsh measures against perceived religious innovation, yet even he recognised the inviolability of *dhimmi* persons and property under a valid covenant. The modern Wahhabi movement, an offshoot of Hanbalism, has generally adopted the most restrictive interpretation.

These differences highlight how tolerance was not an abstract ideal but a lived accommodation negotiated through detailed legal categories: *mu'ahad* (treaty holder), *musta'min* (temporary protected person), and *dhimmi*.

Theological Schools and Pluralist Thought

Theological orientations also shaped pluralist potential. The *Mu'tazila*, who elevated reason above literal tradition, developed a theory of natural justice that could validate moral intuitions independent of revelation—a resource for universal human rights. The *Ash'ari* school, dominant among Sunnis, subordinated ethical judgments to divine command, making religious tolerance a matter of explicit textual permission rather than an inherent right. The *Maturidi* school, influential among Hanafis, occupied a middle ground, granting reason a role in discerning good and evil and thereby opening space for ethical consensus across religious lines. These variant epistemologies continue to inform contemporary debates about the philosophical foundations of tolerance in Islam.

Orientalist Critique and Counterpoints

From the nineteenth century onward, Orientalist scholarship often depicted sharia as inherently intolerant, frozen in the medieval *dhimma* paradigm. This narrative presented the *jizya* as a humiliation tax and the *Pact of Umar* as an enduring emblem of second-class citizenship. Muslim reformers counter that such a reading ignores the historical context of pre-modern empires—where no polity granted equal citizenship in the modern sense—and overlooks the protective function of the *dhimma* system, which regularly saved Jewish communities from persecution when compared with contemporary Christendom. The debate remains live: critics point to modern application of blasphemy laws in some Muslim-majority states as evidence of a structural intolerance; defenders note that these laws are not uniformly derived from sharia but reflect postcolonial authoritarianism.

AI's Humanistic Approach to Sharia

A novel development is the use of artificial intelligence to mine classical legal corpora. By analysing thousands of fatwas, exegetical works, and court records, machine-learning tools can identify minority opinions that championed broad religious freedom. These “humanistic” retrievals show, for example, that several Andalusian jurists argued for the right of a non-Muslim to publicly ring church bells, or that Ottoman Hanafi judges regularly upheld the property rights of monasteries against expropriation. AI does not create new doctrine but surfaces marginalised voices, empowering reformers who argue that pluralism is not an alien import but a recovery of Islam's own ethical resources.

Human Rights Declarations and Religious Freedom

The Universal Declaration of Human Rights (1948) states in Article 18 that everyone has the right to freedom of thought, conscience, and religion, including the freedom to change religion. Many Muslim-majority states signed the UDHR but entered reservations on apostasy and family law. The 1990 Cairo Declaration on Human Rights in Islam, adopted by the Organisation of Islamic Cooperation, affirms the right to live in security for one's religion but subjects all rights to the *sharia*—a clause widely criticised for subordinating individual conscience to communal orthodoxy. The tension between these two frameworks epitomises the difference between liberal pluralism's individual-rights baseline and a sharia-based approach that balances individual freedom against the preservation of the faith community.

Interfaith Relations as Individual Rights Today

In contemporary religiously diverse contexts, Muslim thinkers are increasingly framing interfaith relations in the language of individual rights. The classical concept of *maṣlaḥa* (public welfare) is invoked to justify equal citizenship in secular polities, and the older *dhimma* contract is reinterpreted as a historical artefact, not a binding model. Figures ranging from Tunisian scholar Mohamed Talbi to

American jurist Khaled Abou El Fadl argue that the Quran's endorsement of religious freedom is a universal principle that should override medieval juristic restrictions. In minority situations, European and North American Muslims routinely navigate secular legal systems that grant full religious liberty, and they do so by reference to the same *fiqh* principles of pact-keeping and justice.

The comparison between sharia and liberal pluralism on religious tolerance thus reveals a field of dynamic tension rather than static opposition. Liberal pluralism starts with the autonomous individual as the bearer of inviolable rights. Sharia starts with God's sovereignty and the communal obligations it entails. Yet within the sharia tradition, the concepts of compassion, justice, and covenant have repeatedly generated spaces for genuine religious coexistence. Recognising these internal resources—now illuminated by digital humanities—offers a more nuanced picture than either apologetics or polemics. Religious tolerance in Islam is not a fixed doctrine but a historical practice shaped by context, interpretation, and the perennial search for justice (*'adl*) that lies at the heart of the Quranic message.

SEGMENTED DATA (2)

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